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Case Number: 24AHCV00214 Hearing Date: June 25, 2026 Dept: P

[TENTATIVE] ORDER CONTINUING PLAINTIFF'S MOTION TO DEEM REQUESTS FOR ADMISSION ADMITTED, MOTION TO COMPEL RESPONSES TO REQUEST FOR PRODUCTION OF DOCUMENTS (SET ONE) AND RESPONSES TO SPECIAL INTERROGATORIES (SET ONE) AND REQUEST FOR MONETARY SANCTIONS

I. INTRODUCTION

This case arises from Plaintiffs Skyler Benitez and Savannah Benitez (collectively, "Plaintiffs") tenancy in Rosemead, California. Plaintiffs allege that Defendants San Garvey Investments, LLC, and Does 1 through 50 (collectively, "Defendants") maintained the property in a substandard and uninhabitable condition. Plaintiffs filed the complaint on February 1, 2024, asserting claims for (1) Failure to Provide Habitable Dwelling, (2) Private Nuisance, (3) Unfair Competition Under Business and Professions Code section 17200, and (4) Negligence.

On April 30, 2026, Plaintiffs filed a single motion seeking orders: (1) deeming Requests for Admission, Set One, admitted; (2) compelling responses to Requests for Production of Documents, Set One; (3) compelling responses to Special Interrogatories, Set One; and (4) awarding monetary sanctions. No opposition has been filed.

II. LEGAL STANDARD

If a party to whom interrogatories are directed fails to respond at all, the propounding party's remedy is to seek a court order compelling answers thereto. (Code Civ. Proc., § 2030.290.) All that needs to be shown is that the discovery was properly served on the opposing party, that the time to respond has expired, and that no response of any kind has been served. The moving party is not required to show a reasonable and good faith attempt to resolve the matter informally before filing this motion. A motion to compel initial discovery responses need not show good cause, meeting and conferring, or timely filing, and need not be accompanied by a separate statement. (See *Sinaiko Healthcare Consulting, Inc. v. Pac. Healthcare Consultants* (2007) 148 Cal.App.4th 390, 404.) The failure to timely respond also waives all objections.

A party must respond to RFAs within 30 days after service of such requests. (Code Civ. Proc., § 2033.250, subd. (a).) When a party fails to respond timely to RFAs, the propounding party may seek a Court order deeming the RFAs admitted. (Code Civ. Proc., § 2033.280.) An untimely responding party waives all objections, including privilege, unless they subsequently serve responses in substantial compliance with the Civil Discovery Act, and they demonstrate that their failure is the result of mistake, inadvertence, or excusable neglect. (Code Civ. Proc., § 2030.290, subd. (a); § 2033.280, subd. (a).) For untimely responses to RFAs, the Court shall deem the RFAs admitted unless the responding party serves a proposed code compliant response prior to the hearing. (Code Civ. Proc., § 2033.280, subd. (c).) The Court must impose a monetary sanction on the party or attorney whose failure to serve timely RFAs responses necessitated the motion. (Code Civ. Proc., § 2033.280, subd.(c).)

III. ANALYSIS

Plaintiff improperly combined four discovery motions into a single noticed motion and hearing reservation. Specifically, Plaintiff seeks: (1) an order deeming Requests for Admission, Set One, admitted; (2) an order compelling responses to Requests for Production of Documents, Set One; (3) an order compelling responses to Special Interrogatories, Set One; and (4) monetary sanctions, all through a single motion.

Separate discovery devices generally require separately noticed motions. (See Gov. Code, § 70617(a)(4) [requiring filing fees for each motion or application requiring a hearing]; Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group) ¶ 8:1140.1) Combining multiple discovery motions into a single filing improperly circumvents filing fee requirements and undermines the Court Reservation System by allowing a party to proceed on multiple discovery disputes under a single reservation.

Based on the foregoing, the Court declines to reach the merits of the combined motions at this time. At the hearing on this matter, the Court intends to continue the hearing date for these motions to permit Plaintiff to pay the additional filing fees required for the separately combined discovery motions.

IV. CONCLUSION AND ORDER

The discovery motions are CONTINUED.

Plaintiff is ordered to provide notice of this order.

Dated: June 25, 2026

JARED D. MOSES

JUDGE OF THE SUPERIOR COURT